$8,490,000

ILLINOIS FINANCE AUTHORITY
SPORTS FACILITY REVENUE BONDS

(NORTH SHORE ICE ARENA PROJECT) SERIES 2008

CERTIFICATE OF WILMETTE HOCKEY ASSOCIATION, INC.

THIS CERTIFICATE OF GUARANTOR is made January 25, 2008. The undersigned, Charles O. Smith and Alan B. Roth, hereby certify that we are the duly qualified **and** acting President and Vice President, respectively, of Wilmette Hockey Association, Inc., an Illinois Not for Profit Corporation (the "Guarantor"), and that as such officers we are familiar with the Guarantor's properties, affairs and records. The undersigned hereby make the following certifications in connection with the issuance by Illinois Finance Authority (the "Issuer") of the Issuer's Sports Facility Revenue Bonds (North Shore Ice Arena Project), Series 2008, issued in the aggregate principal amount of $8,490,000 (the "Bonds"), pursuant to a Trust Indenture (the "Indenture"), dated January **1**, 2008, between the Issuer and Amalgamated Bank of Chicago, as trustee:

1. The Guarantor is an Illinois not-for-profit corporation, duly organized, validly existing and in good standing under the laws of the State of Illinois (attached as Exhibit A is a recent Good Standing Certificate pertaining to the Guarantor issued by the Secretary of State of the State of Illinois). Attached as Exhibit B is a true, correct and complete copy of the Articles of Incorporation, which were filed with the Illinois. Secretary of State's Office on October **15**, 1974, and all amendments thereto. There have been no other changes to such Articles and such Articles were in full force and effect on the date of adoption of the resolutions **referred** to in paragraph 3 hereof and are in full force and effect on the date hereof.

2. Attached as Exhibit C hereto is a true, correct and complete copy of the Bylaws of the Guarantor, as of the date hereof. Such Bylaws were in full force and effect on the dates of adoption of the resolutions referred to in paragraph 3 hereof and are in full force **and** effect on the date hereof.

3. Attached as Exhibit D are true, correct and complete copies of certain resolutions of the Board of Directors of the Guarantor authorizing the financing of the Project (as defined in the Loan Agreement identified below) with the proceeds of the Bonds and the execution of the certificates and documents relating to the Bonds (the "Resolutions"). Said Resolutions have not been amended, altered or repealed, but the same and each and every part thereof is in full force and effect on the date hereof.

4. Included in the transcript of documents pertaining to the issuance of the Bonds is a

true, correct and complete copy of a written certain letter to the Guarantor from the Internal Revenue Service (the "Service") stating the determination of **the** Service that the exemption of the corporation from Federal income taxation remains in full force and effect. Said determination has not been altered, amended or repealed since **the date** thereof.

5. Each of the following documents has been duly executed and delivered by the Guarantor:

a. Loan Agreement

b. Tax Exemption Certificate and Agreement

c. Guaranty Agreement

Such documents, together **with** all other agreements, documents and certificates as may be required to be executed and delivered by the Guarantor to carry out, give effect to and consummate the transactions contemplated by the Bond Purchase Agreement relating to the Bonds are sometimes collectively referred to herein as the "Documents."

6. The Guarantor has full legal right, power and authority to enter into the Documents and to carry out and effectuate the transactions contemplated by the Documents.

7. No consent, approval, authorization or order of, or filing, registration or declaration with, any court or governmental agency or body is required on behalf of the Guarantor for the execution, delivery and performance by the Guarantor of the Documents or the consummation of the other transactions effected or contemplated thereby.

8. The execution and delivery of each of the Documents and the performance by the Guarantor of its obligations thereunder do not and will not violate the Articles of Incorporation or Bylaws of the Guarantor or any court order by which the Guarantor is bound, and such actions do not and will not constitute a default under any agreement, indenture, mortgage, lease, note or other obligation or instrument to which the Guarantor is a party, and all approvals and other action required by any governmental authority or agency in connection therewith have been obtained.

9. Each of the Guarantor's representations and warranties contained in all of the Documents **is** true and correct in all material respects on and as of the **date** hereof.

10. There is no action, suit, proceeding, inquiry or investigation, at law or in equity or before or **by** any public board or body pending or, to the best knowledge of the Guarantor, threatened against or affecting the Guarantor or its property or, to the best knowledge

of the Guarantor, any basis therefor, wherein an unfavorable decision, ruling or finding would materially adversely affect (i) the transactions contemplated by any Guarantor Document, (ii) the validity or enforceability of the Bonds or any Document, (iii) the exemption of the Guarantor from Federal income taxation under Section 501(c)(3) of the Internal Revenue Code of 1986, as amended (the "Code"), or (iv) the operations or financial condition of the Guarantor.

11. The Guarantor has duly authorized, by all necessary action, the execution, delivery and due performance by the Guarantor of the Documents.

12. Assuming due authorization, execution and delivery by the other parties thereto, the Documents constitute legal, valid and binding obligations of the Guarantor enforceable against the Guarantor in accordance with their respective terms, subject to any applicable bankruptcy, insolvency, reorganization or similar laws affecting the enforcement of creditors' rights generally and general principles of equity.

13. The Guarantor is an organization described in Section 501(c)(3) of the Internal Revenue Code of 1986, as amended (the "Code"), and is exempt from taxation under Section 501(a) of the Code, the Guarantor is not a "private foundation" as defined in Section 509(a) of the Code, no portion of the net earnings of the Guarantor inures to the benefit of any private person, and the Guarantor has no "unrelated business taxable income" as defined in Section 512 of the Code.

14. North Shore Ice Arena, LLC (the "Borrower") is a limited liability company, the sole member of which is the Guarantor. The Borrower has not elected, nor will the Borrower elect to be treated as a corporation for federal tax purposes. The Borrower is organized and operated for the purpose of carrying out the charitable purposes of the Guarantor.

15. The Guarantor is an organization described in Section 501(c)(3) of the Code, is exempt from Federal income taxes under Section 501(a) of the Code, and is not a "private foundation" within the meaning of Section 509(a) of the Code. At all times on and after the date hereof, the Borrower, the Guarantor and Winnetka Hockey Club, Inc. are expected to be treated for federal tax purposes as, the sole owners and users of the Project. To our knowledge, there has been no material change or threatened change in the status of the Guarantor an organization described in Section 501(c)(3) of the Code.

16. No more than 5% of the net proceeds of the Bonds (including the 2% thereof used for costs of issuance) are to be used for any trade or business carried on by any person who is not (a) a governmental unit or (b) an organization described in Section 501(c)(3) of the Code and exempt from tax under Section 501(a), but only with respect to a trade or business which is not an unrelated trade or business determined by applying Section 513(a) to such organization (any person described in (a) or (b), an "Exempt Person"). Further, no more than 5% of the net proceeds of the Bonds is (under the terms of the Bonds or any underlying arrangement) directly or indirectly (x) secured by an interest in property used or to be used in a trade or business carried on by a person who is not an Exempt Person or payments in respect of such property or (y) to be derived from payments (whether or not to any Borrower or the Issuer) in respect of property, or borrowed money, used or to be used for a trade or business carried on by a person who is not an Exempt Person.

17. The Guarantor reasonably expects, as of the date hereof, that the Project will be used for its exempt purpose until the final maturity of the Bonds and will not meet the private business test.

18. The Project will not be used by any person (other than an Exempt Person) whose relationship with the Borrower is such that any item of property comprising the

Project would be considered used in the trade or business of a Non-Exempt Person under Revenue Procedure 97-13, as such Revenue Procedure may be modified or superseded, or any other provision of the Code or the Regulations, if that use will cause the limits described in Paragraph 16 above to be exceeded and will cause interest on the Bonds to lose the exclusion from gross income for federal income tax purposes.

19. The persons named below are, at the date hereof, and were on the dates of their respective execution of the Documents, the duly elected, qualified and acting incumbents of their respective offices of the Guarantor which are set out at the left of their respective names, and the signatures of such persons on the signature page of this Certificate above their names, are the genuine signatures of said officers:

Title

President

Vice President

Name

Charles O. Smith

Alan B. Roth

20. To our knowledge, as of the date hereof, no default or event of default has occurred and is continuing, and no event has occurred and is continuing which with the lapse of time or the giving of notice, or both, would constitute a default or an event of default under any of the Documents or any of the other documents contemplated in any of the Documents or any other material agreement or material instrument to which the Guarantor is a party or by which the Guarantor is or may be bound or to which any of the property of the Guarantor is or may be subject, including all such agreements or instruments to which the Issuer is a party.

21. To our knowledge, there has been no material change or threatened change in the status of the Guarantor as a 501(c)(3) organization as defined in the Code.

22. The information with respect to the Guarantor set forth in the Preliminary Limited Offering Memorandum, dated January 9, 2008 (the "Preliminary Limited Offering Memorandum"), the Supplement to Limited Offering Memorandum, dated January 11, 2008 (the "Supplement to Limited Offering Memorandum"), and the Limited Offering Memorandum, dated January 17, 2008 relating to the Bonds (together with the Preliminary Limited Offering Memorandum, and the Supplement to Limited Offering Memorandum, the "Limited Offering Memorandum"), is true and accurate.

23. There has been included in the Limited Offering Memorandum all material information and full disclosure of all relevant information known to the Guarantor concerning any legal proceedings against the Guarantor.

24. As of the date hereof, the information in the Limited Offering Memorandum concerning the Guarantor is true and correct in all material respects and does not contain any untrue statement of a material fact and does not omit to state a material fact necessary in order to make the statements made, in light of the circumstances under which they were made, not misleading.

25.

The representations and warranties of the Guarantor contained in the Bond Purchase Agreement dated January 17, 2008 (the "Bond Purchase Agreement") the Issuer, the Borrower, the Guarantor and Oppenheimer & Co. Inc. (the "Underwriter") are true and accurate as of the date hereof. The Guarantor has complied with all agreements and satisfied all conditions on its part to be observed or satisfied under the Bond Purchase Agreement and under the Indenture at or prior to the date hereof. Since the respective dates as of which information is given in the Limited Offering Memorandum relating to the Bonds, there has not been any material adverse change in the condition, financial or other of the Guarantor. The Documents are in full force and effect and have not been revoked, altered or amended.

All capitalized terms that are not otherwise defined herein shall have the meanings ascribed to such terms in the Indenture and the Loan Agreement.

[SIGNATURE FOLLOW ON THE NEXT PAGE]

typy

SIGNATURE PAGE OF CERTIFICATE OF WILMETTE HOCKEY ASSOCIATION, INC.

IN WITNESS WHEREOF**, we have signed our** names as **of** the date first above **written above,** for and on behalf of **WILMETTE** HOCKEY ASSOCIATION, INC. **(**the Guarantor).

Signatures

сем обли

Name

Charles O. Smith

Alan B. **Roth**.

Title

President

Vice President

SIGNATURE PAGE OF CERTIFICATE OF WILMETTE HOCKEY ASSOCIATION, INC.

IN WITNESS WHEREOF, we have signed our names as of the date first above written above, for and on behalf of WILMETTE HOCKEY ASSOCIATION, INC. (the Guarantor).

Signatures

Name

Title

Charles O. Smith

President

B. Cate

Alan B. Roth

Vice President

EXHIBIT A

[FOLLOWS ON THE NEXT PAGE]

File Number 5053-484-7

STATE

OF

ILLINOI

S

OFFICE
OF

THE

SECRET

ARY OF

STATE

***To** all* to *whom these Presents **Shall** Come*, ***Greeting**:*

I, Jesse White, *Secretary of State of the State **of** Illinois*,
*do hereby certify **that***

WILMETTE HOCKEY ASSOCIATION, INC., A DOMESTIC **CORPORATION,** INCORPORATED **UNDER THE LAWS** OF **THIS** STATE ON OCTOBER 15, **1974**, **APPEARS TO** HAVE COMPLIED **WITH ALL THE PROVISIONS** OF THE **GENERAL NOT** FOR **PROFIT CORPORATION** ACT OF **THIS** STATE, AND **AS OF THIS** DATE, IS IN GOOD **STANDING** AS A DOMESTIC **CORPORATION** IN **THE** STATE OF **ILLINOIS**.

SEAL

THE
STATE
OF
UNIO
N
ILLINOIS

*In Testimony **Whereof,** I hereto set* my *hand* *and cause to be affixed the Great* Seal of ***the** State of* Illinois,
this 22ND

day
of

AUG.
267"
1818.

Authentication #:
0802201300

Authenticate at: http://www.cyberdriveillinois.com

JANUARY

A.D. 2008

Desse White

SECRETARY **OF** STATE

C

EXHIBIT B

[FOLLOWS ON THE NEXT PAGE]

File Number

5053-484-7

STATE OF

ILLINOIS

OFFICE
OF

THE SECRETARY OF

STATE-

To *all* to whom these Presents *Shall* Come, *Greeting:*

I, Jesse White, Secretary *of* State of the *State of Illinois, do hereby certify that*

ATTACHED HERETO IS A TRUE AND CORRECT **COPY**, **CONSISTING** OF 5 PAGE**(S)**, AS TAKEN FROM THE ORIGINAL ON FILE **IN THIS** OFFICE FOR WILMETTE HOCKEY ASSOCIATION, INC..

C

OF

THE

"STATE

OF

ILLINOIS

In *Testimony Whereof, I hereto set* my *hand and cause* to be *affixed* the *Great Seal of the State* of *Illinois*, this **23RD**

day

of

JANUARY

A.D.

2008

Desse White

SECRETARY OF **STATE**

AUG.

26

1818.

Authentication #: 0802301297

Authenticate at: http://www.cyberdriveillinois.com

Certificate Number

21213

STATE OF ILLINO

IS

6 OFFICE

OF

THE SECRETARY OF STATE

To all to **whom** these Presents Shall Come**,**

Greeting:

Whereas, Articles of Incorporation, duly signed, and verified of

WILMETTE HOCKEY ASSOCIATION, INC.

have been filed in the Office of the Secretary of State on the

day of

October

AD19

15th-

A. D. 19._ 74, as provided, by the **GENERAL** *NOT FOR* PROFIT CORPORATION ACT" of Illinois, approved July 17, 1943, in force January 4 AD. 1944;

Now Therefore. P. MICHAEL & HOWLETT, Secretary of State of the State of Illinois, bypoirtice of the powers wasted in me by law do hereby issue this Certificate of Incorporation and attach thereto a copy of the Articles of Incorporation

of the aforesaid

corporation:

In Testimong **Whereof,** Theretoset my hand and cause to be affixed the Great Seal of the State of Illinois.

Doneat the City of Springfold, **this**.

day of

15th

October AD 1974, and

of the Independence of the United States

the one hundred, and 99th

Michael J. Howlett-

SECRETARY DE STATE.

"Filing **Fee**
$35,00

FORM NP-29

ARTICLES **OF** INCORPORATION

UNDER **THE**

GENERAL **NOT** FOR PROFIT CORPORATION ACT

(These Articles Must Be Fllad in Duplicate)

To Michael **J.** Howlett, Secretary **of** State, **Springfield**, Illinois

(Do Not Write In This Space)

Date Paid

10-15-174

Filling Fet S

We, **the** undersigned,

Not less than three)

Narus

Number

Street

Address

City

State

Jack C **Nixon**

835

15th

Wilmette, Illinois

Lloyd Bunting

1715 Washington

John Martini

7822 Keeler

Wilmette, Illinois

Skokie, Illinois

5962 25

being natural persons of the age of twenty-one years or more and citizens of the United States, for the purpose of forming a corporation under the "General Not For Profit Corporation Act" of the State of Illinois, do hereby adopt the following Articles of incorporation:

1. The name of the corporation I WILMETTE HOCKEY ASSOCIATION 2. The period of duration of the corporation la: Perpetual

3. The address of Its Initial Registered Offics in the State of Tilinols iz:

Street in the Village

Wilmette

the name of its initial Registered Agmt at sid Address

4 The first Board of Directors shall

Jack C. Nixon
Hugo Martens.
Thomas Bonnie

PAID

LOCT 211974

Phillips Montross
Thongs, Littl
Lloyd Bunting
David Maguire
Howard Fink
Mitchell H. Toombs

ten

Cot less than three)

Number

835 -

INC.

ual"" or a defnito mumber of years)

835-15th

60091

County of

Cook

Jack C. Nixon

and

in **number**, their **names and** addresses **being** as follows:

Street

15th

2437 Cardinal Lane

435 Ridge

724 Sheridan

1629 Highland

1715 Washington

1041 Forest

Address

State

Wilmette

Illinois

Wilmette

Illinois.

Wilmette Illinois

linois int

Wilmette Illinois Wilmettia.

Wilmette **Linous**

Wilmette rijinais Wilmette **Illinois**

1928 Central

647 Briar

7822 Keeler

John Marten **purposes** for **which** the corporation **is** organized are:

Kenilworth Illinois **Skokie**

Illinois

To carry **on an** instructional, **educational and** recreational **hockey program** for youth **of** Wilmette, **Illinois and** other **communities in** the area.

(**Note:** Any **special** provision **mathrai** or **permitted** by **statute** to be contained in **the** Articles **of** Incorporation, **may be inserted** above:)

INCORPORATORS MUST SIGN BELOW)

Jack

Mejor

2. Niar Juni

MAR JAY

STATE OF ILLINOIS,

County of Cook

HOWARD L. **FINK**

−14

day of

October

ACKNOWLEDGMENT

194

Incorporators

a **Notary Public** do **hereby certify that** on **the**

TACK C

Names **or** Incorporators)

LLOYD **BUNTING and** JOHN **MARTINI**

personally **appeared** before me **and being** first **duly** sworn **by** me severally acknowledged that they **signed the** foregoing document in the **respective capacities** therin set **forth** and **declared that the** statements therein **contained** are true.

IN WITNESS WHEREOF, I have hereto set my hand **and** seal the **day and year** above **written**

PLACH

(NOTARIAL SEAL)

HERD

5053-484-7

FORM NP-**29**

↑ ARTICLES OF INCORPORATION

omi zapun

GENERAL **NOT** FOR **PROFIT** CORPORATION **ACT**

WILMETTE HOCKEY ASSOCIATION, IN

INC.

OCT15 1974

SECRE

TARY

OF

STATE

Mickil

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Howe
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Notary Public

(These Articles Must Be Ezoented and Filled in. Drapilento)
Tuing Tee $25.00
OFTE E MAD
(49918–20M-2-73) 30–

File # N5053-484-7

For **BCA-5.10**

NFP-105-10

Rev. Jan. 1999)

Jesse **White**
Secretary **of State**
Department of Business
Services
Springfield, IL
62756
Telephone **(217)**
782-3647
http://www.sos.state.il.us

Jesse White Secretary **of State**

Date

FILED **DATE 2/5/2002**

STATEMENT OF

CHANGE

OF REGISTERED **AGENT**

AND/OR REGISTERED

OFFICE

CP0633049

Type or print in black ink only.

SUBMIT IN DUPLICATE

This space **for** use **by** Secretary **of** State

FILED **DATE 2/5/2002)**

Filing
Fee

Approved: CED
$5

Remit payment in check or money ***order,*** **payable to "**Secretary of State,

Sce reverse side for
signature(s).

1. CORPORATE NAME: WILMETTE HOCKEY ASSOCIATION, INC.

2. STATE OR COUNTRY OF INCORPORATION: Illinois

3. Name and address of **the** registered agent and registered office as **they appear on** the records of **the** office of the Secretary of **State *(*before change)**:

Registered
Agent

Ronald

First **Name** Registered Office

747 Ivy **Lane**

Number **Glencoe**

City

***Middle* Name**

Adelman Last Name

Street

Suite* No.** (A *P.* O. Box alone **is not *acceptable)

60022

Cook

ZIP Code

**Count
y**

registered agent and **registered** office shall be ***(after* all** changes **herein *reported):***

4. Name **and** address **of** the

Registered
Agent

Alan

First *Name*

B.

Middle Name

Roth

Last Name

Registered **Office 225 West** Wacker Drive, **Suite 2800**

Number Chicago

City

Street

Suite *No.* (A P. O. **Box alone** *is* not **acceptable*)***

Cook

60606

ZIP **Code**

County

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FND

ت

:

5.

The **address of the registered** office and the **address** of the business office **of the** registered agent**,** as **changed,** will **be identical**.

The above change was authorized by**: ("X" one** box ***only)***

a.

By resolution duly adopted **by the board of** directors.

(Note **5)**

b.

By action of the **registered agent**.

(**Note** ***6)***

NOTE: When the registered agent changes, **the signatures** of both president **and** secretary **are** required. 7. *(*If authorized *by* the *board **of*** directors**,** sign *here*. *See* Note **5**)

The undersigned corporation has caused this statement to be signed by its duly authorized officers, each of whom affirms**, under** penalties **of perjury**, that the facts **stated** herein are true.

Dated January

(*Month* **&** ***Day*)**

his

attested by ring

(Exact Name of

2002

(Year*)* 1-12-02

WILMETTE HOCKEY ASSOCIATION, INC.

by

D

e

(Signature of Secretary **or Assistant** Secretary***)***

Bill Sciortino, Secretary

(Type or Print ***Name and*** Tille***)***

(Signature of ***President or*** Vice ***President)***

Dennis O'Malley, **President**

(Type or **Print** Name ***and Tille)***

(If change *of* registered ***office*** by registered ***agent,*** sign **here**. ***See Note 6)***

The undersigned, under penalties of perjury, **affirms that** the facts stated herein are **true**.

Dated

(Month **&** Day)

(Year)

NOTES

(**Signature** of *Registered* **Agent** of **Record*)***

1.

2.

3.

4.

5.

6.

The registered **office** may**,** but need not **be** the same as the principal **office** of the corporation. However, the registered office and the **office address of the** registered agent must be **the same**.

The registered office must include a street or **road address**; a post office **box** number alone is not acceptable. A corporation cannot act as its own registered **agent**.

If **the** registered **office is changed** from one county **to** another**, then** the corporation must **file with the** recorder of deeds of the new **county** a **certified copy of** the articles of incorporation and a certified **copy** of the statement of change **of** registered office. Such certified copies may be obtained ONLY **from** the Secretary of State.

Any change of ***registered*** agent must be by resolution **adopted** by the **board** of directors. This **statement** must then be **signed** by **the** president **(*or* vice-*president)* and** by **the** secretary **(or** an assistant ***secretary)***.

The registered agent **may** report a **change of the *registered office* of** the corporation for which he or she is registered agent. When the agent **reports** such a **change**, **this** statement must be signed **by** the **registered** agent.

C-135.13

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EXHIBIT C

[FOLLOWS ON THE NEXT PAGE]

WILMETTE HOCKEY ASSOCIATION, INC.
AMENDED AND RESTATED BYLAWS

SEPTEMBER, 2006

ARTICLE I

NAME

The corporation shall be known **as** the Wilmette Hockey Association, Inc. **(**the "Corporation"), a not for profit corporation, organized under the laws of the State of Illinois, and having its location in Wilmette, Illinois.

ARTICLE II

PURPOSE

Section 2.1 General. The purpose of **the** Corporation is to carry on **an** instructional, educational and recreational hockey program *for* youth of Wilmette, Illinois, and other communities in the area, to receive charitable contributions where allowed by applicable state and Federal law, and to do anything necessary and proper to further the foregoing purposes.

Section 2.2 Limitations on Powers. No part of the income of the Corporation may be distributed to its members, directors or officers. The Corporation shall distribute its income at **such** time and in such manner as not **to** subject it to **tax** under **Section** 4942 of the Internal Revenue Code of 1986, as amended and the regulations promulgated thereunder **(the** "Code**")**. The Corporation shall not engage in any action of self dealing (as defined in Section 4943(c) of the Code, make any investment in such manner as to subject the Corporation to tax under Section 4944 of the Code, or make any taxable expenditures (as defined in Section 4945(d) of the Internal Revenue Code).

ARTICLE III

REGISTERED OFFICE AND REGISTERED AGENT

The Corporation shall **have** and continuously maintains in this state a registered office and a registered agent whose office is identical **with** such registered office.

ARTICLE **IV**

MEMBERS

Section 4.1 Eligibility. Membership in the Corporation shall consist of any family with a child **in** a program run by the Corporation which membership shall be effective upon payment of **all** applicable registration **fees** and shall expire each year upon the commencement of a new fall hockey season and the non payment **of** registration fees for such fall season. Each family shall **be** considered to be one member regardless of the number of children participating in any program **run** by the Corporation. Membership shall also consist of any person over the age of 18 years who is interested **in** the Corporation's hockey program and supportive of the Corporation's objectives who makes application to the Board of Directors **for** membership and whose application is accepted by a

vote of the Executive Committee of the Board of Directors. Such membership shall be annual and will expire automatically after the annual meeting unless petition is made to the Board of Directors for renewal.

Section 4.2 Voting Rights. Each member of the Corporation shall be entitled to one vote on each matter submitted to a vote of the members of the Corporation.

Section 4.3 Dues. The Board of Directors shall establish and **collect** such registration fees and other charges **fees** for the furtherance **of** the operation of the Corporation and its hockey program as **it** may from **time** to time deem necessary and appropriate.

ARTICLE V

MEETINGS OF MEMBERS

Section 5.1 Annual Meeting. An annual meeting shall be held during the month of June at a time and place designated by the Board of Directors **for** the purpose of discussing any relevant matters relating to the Corporation and/or its hockey program, and to elect such directors and officers whose terms are expiring.

Section 5.2 Special Meetings. Special meetings of the members may be called by the President at his or her discretion. In addition, a special meeting shall be called by the President upon direction of the Board of Directors or upon written request of fifty (50) members **of** the Corporation. The special meeting shall be held no later than thirty (30) days of the request.

Section 5.3 Notice of Meetings. Notice of every meeting of members shall be posted on the Website maintained by the Corporation, www.wilmettehockey.com. Said notice shall be given not less than five (5) nor more than forty (40) days before the date of such meeting. The notice shall state the place, day and hour of the meeting and in

case of a special meeting **or** when required by law or by these Bylaws**,** the purpose for which the meeting is called.

Section 5.4 Quorum. For purposes of the annual meeting a quorum shall consist of any number of members in excess of one present when the meeting is called to order. For any other meeting of members, fifty (50) members present will constitute a quorum at such meeting. If a quorum is not present the meeting shall adjourn without further notice.

Section 5.5 **Proxies**. No proxies shall be allowed.

ARTICLE VI

BOARD OF DIRECTORS

Section 6.1 Number of Directors. **The** Board of Directors shall be comprised of no more than forty (40) persons. each of whom shall be a member of the Corporation. At any matter in which a director is entitled to vote, each such director shall be entitled to one vote.

Section 6.2 Powers and Duties. The Corporation shall be directed by the Board of Directors which shall be vested with **all** powers necessary to govern **the** Corporation, regulate the hockey program, and promote the welfare, objectives, and purposes of the Corporation.

Section 6.3 Meetings. The Board of Directors shall hold a regular meeting each month at a time and place as designated in the notice of such meeting, except as the Board of Directors specifies a different time for a meeting or cancellation of a meeting. Special meetings of the Board of Directors can be called by the President, or in his **or** her absence by the Vice President.

Section 6.4 Quorum. One-third (1/3) of the Board of Directors shall constitute a quorum for the transaction of business at a regularly scheduled meeting of the Board **or** Directors. However, at a special Board of Directors meeting a majority of the Board of Directors shall constitute a quorum.

Section 6.5 Term of Office. The **term** of **office** for each **Director** shall be three (3) years, or until a successor is elected and qualified.

Section 6.6 Removal. No person shall be removed from the Board of Directors unless two thirds (2/3) of the entire Board of Directors votes **to** remove such person from the Board of **Directors**.

Section 6.7 Appointment and Vacancies. Subject to the Board of Directors' approval, the President may nominate **any** member to the Board of Directors provided

that the Board of Directors does not exceed forty (**40)** persons. Any vacancy occurring in the Board of Directors shall be filled by appointment of the President with approval of the Board of Directors. A director appointed to fill a vacancy shall be appointed until the next annual

meeting or until his *or* her successor is appointed or elected.

ARTICLE VII

OFFICERS

Section 7.1 General. The officers **of** the Corporation shall be a President, a Vice President, a Treasurer and a Secretary**,** Travel Director, House League Director, Girls Program Director, NIHL Representative and Sponsorship Director.

Section 7.2 Election. The Board of Directors at the annual meeting shall elect a President, Vice President, Secretary, Treasurer, Travel Director, House League Director, Girls Program Director, NIHL Representative and Sponsorship Director by majority vote.

Section 7.3 Vacancies. Any vacancy in any office because of death, resignation or removal may be filled by a majority vote of the Board of Directors for the unexpired portion of the term in question.

Section 7.4 President. The President shall be the principal executive officer of the Corporation and shall in general supervise and control all of the business and affairs of the Corporation. He shall preside at all meetings the members and of the Board of Directors. He may sign, with the **Secretary** or any other officer **of** the Corporation authorized by the Board of Directors, any contracts **or** other instruments which the Board of Directors has authorized to be executed, except in cases where the signing and execution thereof shall be expressly delegated by the Board of Directors or by these Bylaws **or** by statute to some other officer or agent of the Corporation; and in general shall perform all duties incident to the office of President and such other duties as may be prescribed by the Board of Directors from time to time. The President may not contemporaneously hold any other position except the office of director.

Section 7.5 Vice-President. In the absence of the President or in the event **of** his or her inability or refusal to act, the Vice President shall perform the duties **of** the President, and when so acting, shall have all the powers of **and** be subject to all the restrictions upon the President. The Vice President shall perform such other duties **as** from time to time may be assigned to him or her by the President or by the Board of Directors.

Section 7.6 Treasurer. The Treasurer shall have charge and custody of and be responsible for all funds and securities of the Corporation; receive and give receipts *for* monies due and payable to the Corporation from any **source** whatsoever, and deposit

all such monies in the name of the Corporation in such banks, trust companies or other

depositories as shall be selected in accordance with the provisions of Article XII **of** these Bylaws; and in general perform all duties incident to the office of Treasurer and such other duties as from time to time may be assigned to him **or** her by the President or by the Board of **Directors**.

Section 7.7 Secretary. The Secretary shall keep the minutes of the meetings of the Board of Directors in one **or** more books provided for that purpose; see that all notices are duly given in accordance with the provisions of these Bylaws or as required by law; be custodian of the corporate records and of the seal of the Corporation and see that the seal of the Corporation is affixed to all documents, the execution of which on behalf of the Corporation under **its seal** is duly authorized in accordance with the provisions of these Bylaws; keep a register of the post office address of each Director and member which shall be furnished to the Secretary by such Director and member; and in general perform all duties incident to the office of the Secretary and such other duties as from time to time may be assigned to him or her by the President or by the Board of Directors.

Section 7.8 Travel Director. The Travel Director shall oversee all traveling team matters, including the preparation and distribution of appropriate travel forms; recruiting players, coaches and managers**; work** with the travel team managers to prepare team rosters; oversight of the on-ice management of the travel program; allocation of ice time for the travel hockey program; and to assist in coordinating any matters incident to the travel program.

Section 7.9 House League Director. The House League **Director** shall oversee the appropriate house league forms and advertisements; recruiting players, coaches and managers; work with the house league team managers to prepare team rosters; oversight of the on-ice management of the house league program; allocation of ice time to the house league hockey program; and to assist in coordinating any matters incident to the travel program.

Section 7.10 NIHL Representative. The NIHL Representative shall be responsible for the relationship between the Corporation and the Northern Illinois Hockey League ("NIHL"). The NIHL Representative shall represent the Corporation in all NIHL matters and shall serve, as appropriate, on NIHL committees.

Section 7.11 Girls Program Director. The Girls Program Director shall oversee all girls travel teams, including recruiting players, coaches and managers; preparing team

rosters; and all matters otherwise involving girls travel hockey.

Section 7.12 Sponsorship Director. The Sponsorship Director shall be responsible for all sponsorships, advertising, fundraising, benefits, including but not limited to annual skate-a-thons and dinners, and any other activities incident to or related to the fundraising activities of the Corporation.

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Section 7.13 Term of Office. The officers of the Corporation shall serve for a term of one year or until their successors are elected and qualify.

Section 8.1

ARTICLE **VIII**

EXECUTIVE COMMITTEE

Executive Committee. The Executive **Committee** shall **be** the policy-making committee of the Corporation. It shall consist of the President, Vice President, President Emeritus, Treasurer, Secretary, NIHL Representative, Travel Program Director, House League Director, Girls Program Director and the Sponsorship Director and one (1) member **from** the Board of Directors. The President shall select such at-large members. The President shall be the chairperson of the Executive Committee. All actions of the Executive Committee shall be by a majority vote of the members. Each member **of** the Executive Committee shall **serve for** a one (1) year term. Six (6) members of the Executive Committee shall contribute a quorum for the transaction of business at a duly called meeting of the Executive Committee.

The Executive Committee shall determine policy matters relating to or affecting **the** Corporation and shall make all decisions affecting the Corporation other than the following which shall require majority approval (unless a higher number **is** otherwise specified) of the Board of Directors:

(**a**)

Dissolve the Corporation;

(b)

Appointing any person to the Board of

Directors;

(c) Removing members from the Board of Directors (which shall require approval of two thirds (2/3) of the entire Board of Directors);

(d) Appoint and remove officers;

(e) Remove at-large Executive Committee members;

(f) Approve the annual budget for the Corporation ("Budget");

(g). Approve expenditures over $5,000.00 not otherwise provided for in the Budget;

(h) Approval all policies proposed by the Executive Committee;

(i) Approve a Director of Hockey candidate recommended by the Executive Committee;

(j). Approve any change in Hockey League affiliation;

○

(k) Termination of the Director of Hockey;

(1) Approval of a Director of Instruction candidate recommended by the Executive Committee; and

(m) Termination of the Director of Instruction.

ARTICLE IX

MEMBERS ATTENDANCE AT BOARD OF DIRECTORS MEETINGS

Section 9.1 General. Any member may attend any meeting of the Board or Directors. In the event that any member desires to be heard **on** any subject matter relating to the affairs of the Corporation, such member shall submit a written request at least one week prior to the next Directors' meeting to the President, or, if he is unavailable, to the Vice President, advising such officer of the subject matter to be discussed. The member, at the discretion of the presiding officer, shall then be granted a reasonable time at such meeting to raise that subject matter, taking into consideration all of the other business affairs of the Corporation to be covered at such meeting.

ARTICLE x

NOMINATING COMMITTEE AND OTHER COMMITTEES

Section 10.1 The President with approval of the Board of Directors, **will** appoint by April 1 of each year, a Nominating Committee which shall be comprised of four (4) directors. The Chairman of the Nominating Committee shall be designated by the President.

Section 10.2 The Nominating Committee shall, by majority vote, select a slate of nine (9) officers for nomination to one year terms of office.

Section 10.3 The officer slates shall be delivered to the Secretary not less than ten (10) days prior to the annual meeting. The Secretary **will** deliver, mail or publish (electronically or otherwise) the slate of officers to the directors as soon as reasonably

practicable but in any event not later than ten days prior to the annual meeting.

Section 10.4. The Executive Committee shall establish such other committees as determined to be necessary to carry out the purposes and goals of the Corporation.

ARTICLE XI

DIRECTOR OF HOCKEY, DIRECTOR OF INSTRUCTION AND OTHER STAFF

Section 11.1 Director of Hockey. The Corporation shall employ a Director **of** Hockey who shall be responsible for all aspects associated with the management and administration of the Corporation. The duties and responsibilities of the Director of Hockey shall be determined, from **time** to time, by the Executive Committee. The Director of Hockey shall report directly to the Executive Committee and attend Board of Directors meetings when requested by the President. The Director of Hockey shall not be a member of the Board of Directors. The Director of Hockey shall not have a vote at any such meeting.

Section **11.2** Director of Instruction. The Corporation may employ, either as an employee or an independent contractor, a Director of Instruction who shall report to the Director of Hockey and the Executive Committee. The Director **of** Instruction shall be responsible for establishing and overseeing the instructional aspects of the Corporation's program. The Director of Instruction shall work with and under the supervision of the Director of Hockey to establish appropriate training **for all** levels of hockey players with a significant emphasis in mite and squirt development.

Section 11.3 Staff. From time to time, the Corporation shall hire such staff members, either as employees or independent contractors, as appropriate, to perform such tasks necessary to carry out the goals and purposes of the Corporation.

Section 12.1

ARTICLE XII

CONTRACTS, CHECKS, DEPOSITS AND FUNDS

Checks, Drafts, etc. All checks, drafts **or** other orders for payment of money, notes or other evidences of indebtedness issued in the name of the Corporation, shall **be** signed by **such** officer **or** officers, agent or agents of the Corporation and in such manner as shall from time to time be determined by resolution of the Board of Directors. In the absence of such determination by the Board of Directors, such instruments shall be signed by the Treasurer or the President of the Corporation. Any check or instrument of the Corporation having a value in excess of Ten Thousand and No/100 Dollars **($**10,000.00) shall require **the** signatures of two (2) officers.

Section 12.2 Deposits. All funds of the Corporation shall be deposited from time to time to the credit of the Corporation in such banks, **trust** companies **or** other depositories as the Treasurer, with approval of the Executive Committee.

Section 12.3 Gifts. The Board **of** Directors may accept on behalf of the Corporation any contribution, gift, bequest or devise *for* the general purposes or for any special purpose of the Corporation.

Section 12.4 Fiscal Year. The fiscal year of the Corporation shall be the twelve month period beginning on July 1st of each year and ending on the last day of June of the following year.

ARTICLE XIII

BOOKS AND RECORDS

Section 13.1 General. The Corporation shall keep correct and complete books and records of account and shall also keep minutes of the proceedings of **its** members, Board of Directors and committees having any of the authority of the Board of Directors, and shall keep at the registered or principal office a record giving the names and addresses **of** the members entitled to vote. All books and records of the Corporation may be inspected by any Director **or** member **for** any proper purposes at any reasonable time.

ARTICLE **XIV**

WAIVER **OF NOTICE**

Section 14.1 General. Whenever **any** notice whatever **is** required to be given under the provisions of the General Not for Profit Corporation Act of Illinois or under the provisions of the articles of incorporation or by the Bylaws of the Corporation, a waiver thereof in writing signed by the person or persons entitled to such notice, whether before or after the time stated therein, **shall** be deemed equivalent to the giving of such notice.

(a)

ARTICLE **XV**

INDEMNIFICATION

The Corporation **may** indemnify any person who **was** or is a party, **or** is threatened to be made a party to any threatened, pending or completed action, suit or proceeding, whether civil, criminal, administrative **or** investigative (other than an action by or **in** the right of the Corporation) by reason of the fact that he is or was a director, officer, employee or agent of the Corporation, or who is or was serving at the request of the Corporation as a director, officer, employee or agent of another corporation, partnership, joint venture, trust **or** other enterprise**,** against expenses (including attorneys' fees), judgments, fines and amounts paid in settlement actually and reasonably incurred by him in connection with such action, suit or proceeding, if he acted in good faith and in a manner he reasonably believed to be in, or not opposed to, the best interests **of** the Corporation, and, with respect to any criminal action or proceeding, had **no** reasonable **cause** to believe his conduct was unlawful. The

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termination of any action, suit **or** proceeding by judgment, order, settlement, conviction, or upon a plea of nolo contendere **or its** equivalent, shall not, **of** itself, create a presumption that the person did not act in good faith and **in** a manner which he reasonably believed to be in or not opposed to **the** best interests of the Corporation, and, with respect to any criminal action or proceeding, had reasonable cause to believe that his conduct **was unlawful**.

(**b**
)
The Corporation may indemnify any person who was or is a party, or is threatened to be made a party to **any** threatened, pending or completed action *or* suit by or in the right of the Corporation to procure a judgment in its favor by reason of the fact that he is or was a director, **officer**, employee **or** agent of the Corporation, or was serving at the request of the Corporation as a director, officer, employee or agent of another corporation, partnership, joint venture, trust or other enterprise, against expenses (including attorneys' fees) actually and reasonably incurred by him in connection with the defense or settlement of such action or **suit**, if he acted in good faith and in a manner he reasonably believed to be in, *or* not opposed to, the best interests of the Corporation, and except that no indemnification shall be made in respect of any claim, issue or matter as to which such person shall have been adjudged to be liable for negligence or misconduct in the performance of his duty to the Corporation, unless, and only to the extent that the court in which such action or suit was brought shall determine upon application that, despite the adjudication of liability, but in view of all the circumstances of the case, such person is fairly and reasonably entitled to indemnity for such expenses as the court shall deem proper.

(c) To the extent that a director, officer, employee **or** agent of the Corporation has been successful, on the merits or otherwise, in the defense of any action, suit **or** proceeding referred to in paragraphs **(a**) and (b), or in defense of any claim, issue **or** matter therein, he shall be indemnified against expenses **(**including attorneys' fees) actually and reasonably incurred by him in connection therewith.

(d) Any indemnification under paragraphs **(a)** and (b) (unless ordered by a court) shall be made by the Corporation only as authorized **in** the specific case, upon a determination that indemnification of the director, officer, employee **or** agent **is** proper in the circumstances because he has met the applicable standard of conduct set forth in paragraphs (a) or (b). Such determination shall be made (i) by the Board of Directors by a majority vote of a quorum consisting of directors who were not parties to such action, suit or proceeding, or **(ii) if** such a quorum is not obtainable, or even if obtainable, a quorum of disinterested directors so directs, by independent legal counsel in a written opinion, or (iii) by the members entitled to vote, if any.

(e) Expenses incurred in defending a civil **or** criminal action, suit or proceeding may be paid by the Corporation in advance of the final disposition of such action, suit or proceeding, **as** authorized by the Board of Directors in the specific case, upon receipt of an undertaking by or on behalf of the director, officer, employee or agent to repay such amount, **unless it** shall ultimately be determined that he is entitled to be indemnified by the Corporation as authorized in this Article.

(f) The indemnification provided by this Article shall not **be** deemed exclusive **of** any other rights to which those seeking indemnification may be entitled under any by-law, agreement, vote of members or disinterested directors, or otherwise, both as to action in his official capacity and as to action in another capacity while holding such office, and shall continue as to a person who **has** ceased to be director, officer, employee **or** agent, and shall inure to the benefit of the heirs, executors and administrators of such a person.

(g) The Corporation may purchase and maintain insurance on behalf of any person who is or was a director**,** officer, employee **or** agent of the corporation, or who is or was serving at the request of the Corporation as a director, officer, employee or agent of another corporation, partnership, joint venture, trust **or** other enterprise, against any liability asserted against him and incurred by him in any such capacity, or arising out of his status as such, whether or not the Corporation would have the power to indemnify him against such liability under the provisions of this Article.

(h) If the Corporation has actually made indemnification payments **or** has advanced expenses under this Article to a director, officer, employee or agent, the Corporation shall report the indemnification or advance in writing **to** the members entitled to vote or before the notice of the next meeting of the members entitled to vote.

ARTICLE XVI

AMENDMENTS TO THE-BYLAWS

Section 16.1 General. These Bylaws may be altered, amended or repealed and new Bylaws may be adopted, in each case in the manner set forth in this Article XIV. Any such alteration, amendment, repeal or adoption is referred to herein as an amendment. Proposed amendments shall be presented at a meeting of the Board of Directors.

Section 16.2 Vote by Directors. A proposed amendment will be adopted upon receiving at least two-thirds votes of the directors present and voting.

Section 16.3 Multiple Amendments. Any number **of** amendments may be submitted and voted upon at any one meeting of the Board of Directors.

ARTICLE XVII

CONDUCT OF PROCEEDINGS

Section 17.1 General. The proceedings at all meetings of the members of the Board of Directors and of such committees **as** from time to time may **be** established shall be conducted in accordance with the General Not for Profit Corporation Act of the

State of Illinois, the articles of incorporation of this Corporation or the provisions of these Bylaws other than this Section 17.1.

ARTICLE XVIII

SEAL

The corporate seal shall be in a form as the Board of Directors may determine.

EXHIBIT D

[FOLLOWS ON THE NEXT PAGE]

WILMETTE HOCKEY ASSOCIATION, INC.

BOARD OF DIRECTORS'

EXECUTIVE COMMITTEE CONSENT

The undersigned, being the President of the Wilmette Hockey Association, Inc., does hereby certify that the following Resolutions were adopted at the Board of Directors Executive Committee Meeting held on November 8, 2007, and that said Resolutions remain in full force and effect:

RESOLVED, that the Board of Directors of the Wilmette Hockey Association, Inc. (the "Club") has determined that it is in the best interests of the Club to proceed with the development of a single-sheet ice arena (the "Project").

FURTHER RESOLVED, that the Board has authorized the Executive Committee thereof to undertake any and all actions to develop and proceed with the Project.

FURTHER RESOLVED, that the Executive Committee hereby approves the preparation and issuance of a Preliminary Limited Offering Memorandum for the Project.

FURTHER RESOLVED, that the Executive Committee hereby authorizes the execution and delivery of the Trust Indenture, the Loan Agreement, the Mortgage, the Bond Purchase Agreement, and the real estate Ground Lease and all other consents and documents required for the construction and completion of the Project.

FURTHER RESOLVED, that the Executive Committee hereby authorizes and directs the proper officers of the Club to develop and execute the above-referenced and any and all other documents and to take any actions they deem necessary to carry out the intent of the foregoing Resolutions.

IN WITNESS WHEREOF, the undersigned has hereunto put his signature hereon on the date indicated below.

Cluro. Retu

President

Date:

19/08